



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2133: sexual material; consent; synthetic depiction

KUPPER FLOOR AMENDMENT

1. Defines *direct hosting* as storing sexual material on servers, systems or networks that are controlled or operated by the commercial entity where the commercial entity uploads the material and makes the material accessible for viewing, downloading, sharing or distributing through the entity's website, application or platform.
2. Clarifies that *direct hosting* does not mean transitory digital network communications or internet connectivity, system caching, intermediate storage that is incidental to transmission or information location tools including search engines that are hosted by a third party without storing the material on the commercial entity's controlled system.

KUPPER SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2133

I move the following SUBSTITUTE amendment to the ARTIFICIAL INTELLIGENCE & INNOVATION
Committee Amendment to
HOUSE BILL 2133 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or
previously enacted session law.
[Green underlining in brackets] indicates text added to new session law
or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute
or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute,
previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-1425, Arizona Revised Statutes, is amended to
3 read:

4 13-1425. Unlawful disclosure of images depicting states of
5 nudity or specific sexual activities;
6 classification; definitions

7 A. It is unlawful for a person to intentionally disclose an image
8 of another person who is identifiable from the image itself or from
9 information displayed in connection with the image if all of the following
10 apply:

11 1. The person in the image is depicted in a state of nudity or is
12 engaged in specific sexual activities.

13 2. The depicted person has a reasonable expectation of privacy.
14 Evidence that a person has sent an image to another person using an
15 electronic device does not, on its own, remove the person's reasonable
16 expectation of privacy for that image. Unless the realistic pictorial
17 representation is created or modified by the depicted person, this
18 paragraph does not apply to an image that is a realistic pictorial
19 representation.

20 3. The image is disclosed with the intent to harm, harass,
21 intimidate, threaten or coerce the depicted person.

22 B. This section does not apply to any of the following:

23 1. The reporting of unlawful conduct.

24 2. Lawful and common practices of law enforcement, criminal
25 reporting, legal proceedings or medical treatment.

1 3. Images involving voluntary exposure in a public or commercial
2 setting.

3 4. An interactive computer service, as defined in 47 United States
4 Code section 230(f)(2), or an information service or cable service, as
5 defined in 47 United States Code section 153, with regard to content
6 wholly provided by another party.

7 5. Any disclosure that is made with the consent of the person who
8 is depicted in the image.

9 C. A violation of this section is a class 5 felony, except that a
10 violation of this section is a:

11 1. Class 4 felony if the image is disclosed by electronic means.

12 2. Class 1 misdemeanor if a person threatens to disclose but does
13 not disclose an image that if disclosed would be a violation of this
14 section or if the image is a realistic pictorial representation.

15 D. For the purposes of this section:

16 1. "Disclose" means display, distribute, publish, advertise or
17 offer.

18 2. "Disclosed by electronic means" means delivery to an email
19 address, mobile device, tablet or other electronic device and includes
20 disclosure on a website.

21 3. "Harm" means physical injury, financial injury or serious
22 emotional distress.

23 4. "IDENTIFIABLE INDIVIDUAL" MEANS A PERSON WHO IS RECOGNIZABLE BY
24 ANY PERSON, INCLUDING THE PERSON THEMSELF, BY ANY PART OF THE PERSON OR BY
25 ANY OTHER INFORMATION THAT IS PART OF THE DEPICTION.

26 ~~4.~~ 5. "Image" means a photograph, videotape, film, digital
27 recording, ~~or~~ realistic pictorial representation OR SYNTHETIC DEPICTION OF
28 AN IDENTIFIABLE INDIVIDUAL.

29 ~~5.~~ 6. "Realistic pictorial representation":

30 (a) Means an image that is created or modified to reasonably appear
31 to be an actual image of an identifiable person depicted in a state of
32 nudity or engaged in specific sexual activities that did not actually
33 occur.

34 (b) Does not include an image made in the public interest,
35 including scientific or educational activities, a newsworthy event or an
36 issue of public concern.

37 ~~6.~~ 7. "Reasonable expectation of privacy" means the person
38 exhibits an actual expectation of privacy and the expectation is
39 reasonable.

40 ~~7.~~ 8. "Specific sexual activities" has the same meaning prescribed
41 in section 11-811, subsection E, paragraph 18, subdivisions (a) and (b).

42 ~~8.~~ 9. "State of nudity" has the same meaning prescribed in section
43 11-811, subsection E, paragraph 14, subdivision (a).

44 10. "SYNTHETIC DEPICTION" MEANS ANY VISUAL DEPICTION THAT IS
45 CREATED OR ALTERED THROUGH THE USE OF ARTIFICIAL INTELLIGENCE, DIGITAL
46 MANIPULATION OR OTHER TECHNOLOGY AND THAT APPEARS TO DEPICT AN

1 IDENTIFIABLE INDIVIDUAL BUT THAT DOES NOT REPRESENT AN ACTUAL EVENT OR
2 CONDUCT INVOLVING THAT INDIVIDUAL.

3 Sec. 2. Heading change: transfer and renumber

4 A. The chapter heading of title 18, chapter 7, Arizona Revised
5 Statutes, is changed from "GOVERNMENT INFORMATION TECHNOLOGY USE" to
6 "SEXUAL MATERIAL ON THE INTERNET".

7 B. Title 18, chapter 7, Arizona Revised Statutes, is transferred
8 and renumbered for placement in title 44, Arizona Revised Statutes, as
9 chapter 30. Title 18, chapter 7, article 1, Arizona Revised Statutes, is
10 transferred and renumbered for placement in title 44, chapter 30, Arizona
11 Revised Statutes, as article 1. Section 18-701, Arizona Revised Statutes,
12 is transferred and renumbered for placement in title 44, chapter 30,
13 article 1, Arizona Revised Statutes, as section 44-7301.

14 Sec. 3. Title 44, chapter 30, article 1, Arizona Revised Statutes,
15 as transferred and renumbered, is amended by adding section 44-7302, to
16 read:

17 44-7302. Sexual material on the internet; verification and
18 consent requirements; records; applicability;
19 civil penalties; definitions

20 A. A COMMERCIAL ENTITY THAT KNOWINGLY AND INTENTIONALLY PUBLISHES
21 OR DISTRIBUTES, OR ALLOWS THE PUBLICATION OR DISTRIBUTION OF, SEXUAL
22 MATERIAL ON AN INTERNET WEBSITE SHALL DO ALL OF THE FOLLOWING:

23 1. REQUIRE EACH PERSON WHO UPLOADS OR PLACES THE SEXUAL MATERIAL ON
24 AN INTERNET WEBSITE TO VERIFY, USING REASONABLE CONSENT VERIFICATION
25 METHODS, THAT EACH INDIVIDUAL WHO IS DEPICTED IN THE SEXUAL MATERIAL:

26 (a) HAS PROVIDED EXPLICIT INFORMED CONSENT TO THE CREATION,
27 DISTRIBUTION AND PUBLICATION OF THE SEXUAL MATERIAL.

28 (b) WAS AT LEAST EIGHTEEN YEARS OF AGE AT THE TIME THE MATERIAL WAS
29 CREATED.

30 2. MAINTAIN RECORDS OF THE VERIFICATION FOR AT LEAST SEVEN YEARS.
31 ON REQUEST, THE ATTORNEY GENERAL MAY INSPECT THE RECORDS.

32 3. IMPLEMENT REASONABLE MEASURES TO PREVENT THE UPLOADING OF SEXUAL
33 MATERIAL THAT DOES NOT HAVE VERIFIED CONSENT, INCLUDING USING AUTOMATED
34 DETECTION TOOLS WHERE FEASIBLE.

35 B. A COMMERCIAL ENTITY MAY NOT RETAIN ANY IDENTIFYING INFORMATION
36 OF THE DEPICTED PERSON AFTER THE VERIFICATION IS COMPLETE EXCEPT AS
37 REQUIRED FOR THE RECORDKEEPING REQUIREMENTS PRESCRIBED IN THIS SECTION.
38 THE COMMERCIAL ENTITY MAY NOT CAUSE OR ALLOW ANY IDENTIFYING INFORMATION
39 TO BE TRANSMITTED TO ANY FEDERAL, STATE OR LOCAL GOVERNMENT ENTITY.

40 C. THIS SECTION DOES NOT APPLY TO ANY OF THE FOLLOWING:

41 1. A NEWS OR PUBLIC INTEREST BROADCAST OR PUBLICATION.

42 2. MATERIAL THAT IS DISTRIBUTED FOR BONA FIDE SCIENTIFIC, MEDICAL
43 OR EDUCATIONAL PURPOSES.

44 [3. AN INTERNET SERVICE PROVIDER, AN INTERNET SERVICE PROVIDER'S
45 AFFILIATES OR SUBSIDIARIES, A SEARCH ENGINE OR A CLOUD SERVICE PROVIDER
46 THAT SOLELY PROVIDES ACCESS OR A CONNECTION TO OR FROM A WEBSITE OR OTHER
47 INFORMATION OR CONTENT ON THE INTERNET OR ON A FACILITY, SYSTEM OR NETWORK

1 THAT IS NOT UNDER THAT INTERNET SERVICE PROVIDER'S CONTROL, INCLUDING
2 TRANSMISSION, DOWNLOADING, INTERMEDIATE STORAGE, ACCESS SOFTWARE OR OTHER
3 SERVICES TO THE EXTENT THAT THE INTERNET SERVICE PROVIDER, SEARCH ENGINE
4 OR CLOUD SERVICE PROVIDER IS NOT RESPONSIBLE FOR THE CREATION OR DIRECT
5 HOSTING OF THE SEXUAL MATERIAL.]

6 D. A COMMERCIAL ENTITY THAT PUBLISHES OR DISTRIBUTES SEXUAL
7 MATERIAL ON AN INTERNET WEBSITE WITHOUT OBTAINING VERIFIED CONSENT FROM A
8 DEPICTED INDIVIDUAL IN VIOLATION OF THIS SECTION IS SUBJECT TO:

9 1. A CIVIL PENALTY OF \$10,000 FOR EACH DAY OF THE VIOLATION.

10 2. ACTUAL DAMAGES.

11 3. COSTS AND REASONABLE ATTORNEY FEES.

12 4. ADDITIONAL RELIEF, INCLUDING INJUNCTIVE RELIEF.

13 E. THE ATTORNEY GENERAL MAY BRING AN ACTION TO ENFORCE THIS SECTION
14 AND, IN ADDITION TO ANY PENALTY PROVIDED FOR IN SECTION 13-3553, MAY SEEK
15 CIVIL PENALTIES OF UP TO \$250,000 IF A MINOR IS DEPICTED IN THE SEXUAL
16 MATERIAL THAT IS PUBLISHED OR DISTRIBUTED IN VIOLATION OF THIS SECTION.

17 F. THE FOLLOWING PERSONS MAY BRING A CIVIL ACTION PURSUANT TO THIS
18 SECTION:

19 1. THE ATTORNEY GENERAL.

20 2. AN INDIVIDUAL WHO IS DEPICTED IN THE SEXUAL MATERIAL AND WHO DID
21 NOT CONSENT TO THE DEPICTION.

22 G. FOR THE PURPOSES OF THIS SECTION:

23 1. "COMMERCIAL ENTITY" HAS THE SAME MEANING PRESCRIBED IN SECTION
24 44-7301.

25 2. "CONSENT" MEANS AFFIRMATIVE, CONSCIOUS AND VOLUNTARY
26 AUTHORIZATION THAT IS GIVEN BY AN INDIVIDUAL AND THAT IS DOCUMENTED AND
27 VERIFIABLE.

28 [3. "DIRECT HOSTING:

29 (a) MEANS STORING SEXUAL MATERIAL ON SERVERS, SYSTEMS OR NETWORKS
30 THAT ARE CONTROLLED OR OPERATED BY THE COMMERCIAL ENTITY WHERE THE
31 COMMERCIAL ENTITY ENABLES USERS TO UPLOAD THE MATERIAL AND MAKES THE
32 MATERIAL ACCESSIBLE FOR VIEWING, DOWNLOADING, SHARING OR DISTRIBUTION BY
33 OTHER USES OR THE PUBLIC THROUGH THE ENTITY'S WEBSITE, APPLICATION OR
34 PLATFORM.

35 (b) DOES NOT INCLUDE ANY OF THE FOLLOWING:

36 (i) TRANSITORY DIGITAL NETWORK COMMUNICATIONS OR THE MERE PROVISION
37 OF INTERNET CONNECTIVITY OR ACCESS.

38 (ii) SYSTEM CACHING OR INTERMEDIATE STORAGE THAT IS INCIDENTAL TO
39 TRANSMISSION.

40 (iii) INFORMATION LOCATION TOOLS, INCLUDING SEARCH ENGINES, THAT
41 ONLY INDEX, LINK TO OR REFERENCE CONTENT THAT IS HOSTED BY A THIRD PARTY
42 WITHOUT STORING THE MATERIAL ON THE COMMERCIAL ENTITY'S CONTROLLED
43 SYSTEMS.

44 ~~3.]~~ [4.] "DISTRIBUTE" HAS THE SAME MEANING PRESCRIBED IN SECTION
45 44-7301.

1 ~~[4.]~~ [5.] "IDENTIFIABLE INDIVIDUAL" MEANS A PERSON WHO IS
2 RECOGNIZABLE BY ANY PERSON, INCLUDING THE PERSON THEMSELF, BY ANY PART OF
3 THE PERSON OR BY ANY OTHER INFORMATION THAT IS PART OF THE DEPICTION.
4 ~~[5.]~~ [6.] "PUBLISH" HAS THE SAME MEANING PRESCRIBED IN SECTION
5 44-7301.
6 ~~[6.]~~ [7.] "REASONABLE CONSENT VERIFICATION METHODS":
7 (a) MEANS ANY COMMERCIALY REASONABLE METHOD THAT IS REGULARLY USED
8 BY BUSINESSES TO VERIFY CONSENT, WITHOUT REQUIRING OR ALLOWING THE USE OF
9 ANY GOVERNMENT-ISSUED DIGITAL IDENTIFICATION SYSTEM.
10 (b) INCLUDES:
11 (i) AN AFFIDAVIT THAT ATTESTS TO THE CONSENT AND AGE OF EACH
12 DEPICTED PERSON.
13 (ii) A VERIFICATION THROUGH AN INDEPENDENT THIRD PARTY.
14 (iii) ANY OTHER COMMERCIALY REASONABLE METHOD THAT DOES NOT RETAIN
15 IDENTIFYING INFORMATION AFTER THE VERIFICATION IS COMPLETE.
16 ~~[7.]~~ [8.] "SEXUAL MATERIAL" INCLUDES:
17 (a) SEXUAL MATERIAL THAT IS HARMFUL TO MINORS AS DEFINED IN SECTION
18 44-7301.
19 (b) A SYNTHETIC DEPICTION INVOLVING SEXUAL MATERIAL OF AN
20 IDENTIFIABLE INDIVIDUAL.
21 ~~[8.]~~ [9.] "SYNTHETIC DEPICTION" MEANS ANY VISUAL DEPICTION THAT IS
22 CREATED OR ALTERED THROUGH THE USE OF ARTIFICIAL INTELLIGENCE, DIGITAL
23 MANIPULATION OR OTHER TECHNOLOGY AND THAT APPEARS TO DEPICT AN
24 IDENTIFIABLE INDIVIDUAL BUT THAT DOES NOT REPRESENT AN ACTUAL EVENT OR
25 CONDUCT INVOLVING THAT INDIVIDUAL.
26 Sec. 4. Severability
27 If a provision of this act or its application to any person or
28 circumstance is held invalid, the invalidity does not affect other
29 provisions or applications of the act that can be given effect without the
30 invalid provision or application, and to this end the provisions of this
31 act are severable.
32 Sec. 5. Short title
33 This act may be cited as the "Protect Act".

34 Enroll and engross to conform
35 Amend title to conform

NICK KUPPER

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